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The threat to free speech in Germany

One of the freest countries in the world takes a hammer to its own reputation



PHOTOGRAPH: X

Apr 16th 2025 | BERLIN

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IN 2003 Barbra Streisand, an American chanteuse, sought to block the publication of an aerial photo of her Malibu mansion. When news of her frivolous lawsuit spread, so did the number of people who downloaded the image. The phenomenon of unwittingly publicising information by seeking its suppression became known as the “Streisand effect”. Something similar has recently unfolded in Germany.

Last year David Bendels, a journalist, published a doctored photograph of Nancy Faeser, Germany's interior minister, appearing to hold a sign saying *Ich hasse die*

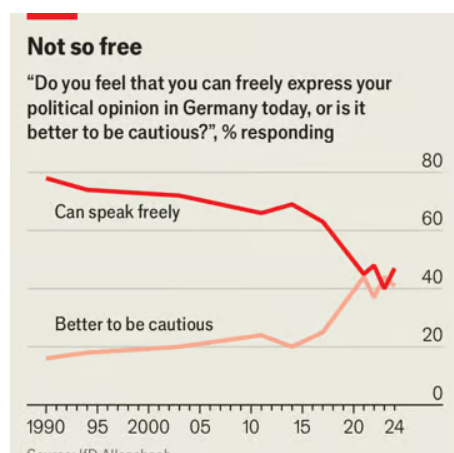
Meinungsfreiheit or “I hate freedom of opinion”. (The original photo, a reference to victims of Nazi atrocities, is shown above.) Such images are a dime a dozen on social media. Yet Ms Faeser seemed determined to prove Mr Bendels right. She filed a criminal complaint, and earlier this month a court handed Mr Bendels a seven-month suspended prison sentence, a hefty fine and an order to apologise.

The verdict led to the widespread distribution of the picture, and inspired armies of amateur satirists to circulate their own faked photos of Ms Faeser, including some that plumbed fresh depths of crassness. It has also shocked many observers in a country whose constitution guarantees the free expression and distribution of opinions, explicitly including images.

German law has long weighed such protections against competing demands. Holocaust denial and Nazi glorification have been outlawed for decades. As long ago as 1955 the constitutional court ruled that “slander and defamation” posed a risk to democracy if it led politicians to withdraw from public life. In 2021 politicians tightened the rules further, worried by the spread of abuse and disinformation on social media. Courts may now punish insults against politicians especially severely, if their work is “significantly impeded”. In Mr Bendels’s case the court ruled, dubiously, that an impartial observer would not be able to tell that the image of Ms Faeser had been altered. That ensured her right to protection from defamation was given priority over his to freedom of expression. Mr Bendels may appeal.

Prosecutors are happy to argue that defamation may impede politicians from exercising their duties. A Bavarian court has ruled that insults “beyond the absolute minimum of respect” can be punished. And more may be to come. The governing agreement between Germany’s incoming coalition partners pledges to empower a regulator to crack down on the “deliberate dissemination of false factual claims”.

No wonder there has been overreach. Last year police searched the flat of a pensioner who had shared an image on X calling Robert Habeck, Germany’s vice-chancellor, an “idiot”. Mr Habeck had filed a criminal complaint about the image, although the prosecutor was acting on a separate notification. A court fined a journalist who had suggested Mr Habeck might not look out of place “in a gathering of railway station alcoholics” (the ruling was overturned). Christian Schertz, a lawyer representing a politician who is suing *Titanic*, a satirical magazine, for lampooning him, says politicians deserve “special protection” in law, given the “massive increase” in hate speech against them, and that the current criminal code gets the balance right. But even he regards the Bendels ruling as excessive.



J.D. Vance, America’s vice-president, has said soldiers stationed in Germany risk imprisonment for a “mean tweet”. That may be rich coming from an administration that has detained foreign students for wrongthink. Germany is not an outlier in freedom-of-expression rankings. But it is not just foreigners who are worried. In 2024 just 40% of Germans told Allensbach, a pollster, that they felt able to express themselves freely. The figure has halved since 1990 (see chart).

In Germany, as in America and elsewhere, free-speech crusades are often regarded as the preserve of the dissident right. Mr Bendels is close to the hard-right Alternative for Germany party, which often complains that its views are unfairly suppressed. Yet left-wing activists, especially pro-Palestinians, have also fallen prey to police and prosecutors. Police in Berlin have shut down conferences and demonstrations in attempts to see off hate speech. Academics who supported pro-Palestine students have been threatened with a loss of funding. The risks to free expression do not go only in one direction. ■

Clarification (April 22nd 2025): Although Robert Habeck filed a criminal complaint against the man who insulted him on social media, state prosecutors had already applied for a search warrant, based on a separate complaint about the image. This piece has been updated accordingly.

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This article appeared in the Europe section of the print edition under the headline "Germany's gag reflex"

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